PAPERS

RELATING TO THE

FOREIGN RELATIONS

OF

THE UNITED STATES,

WITH

THE ANNUAL MESSAGE OF THE PRESIDENT,

TRANSMITTED TO CONGRESS

DECEMBER 2, 1895.

PART I.



WASHINGTON:
GOVERNMENT PRINTING OFFICE.
1896.

particular to your claim that such a guard or "escort" for the United States legation is a specific treaty right.

I do not find that article 5 of the treaty of 1858, to which you appeal, secures to the United States a right to maintain at Peking a military or other guard of 20 men. That article relates to the privilege, then stipulated, of making diplomatic visits to the Chinese capital for the transaction of business, not exceeding one visit each year; and the "entire suite" of the minister (exclusive of Chinese servants) on such journeys is limited to 20 persons. This is quite different from a military guard of 20 soldiers in addition to the personnel of the legation.

Moreover, the provisions of article 5 of the treaty of 1858 are virtually obsolete, since by the Anglo-Chinese treaty of June 26, 1858, the Franco-Chinese treaty of June 27, 1858, and subsequent treaties of China with other countries, the right of maintaining permanent legations at Peking has been granted to certain powers, and enjoyed by the United States as a favored-nation privilege.

I do not find in any of the treaties with China provisions authorizing the protection of the legations by foreign troops. You state in your dispatch that "The question of the right of the legations to have escorts here (Peking) is abstract and independent of the probability of its exercise." If this Government has the right, independently of treaty, to keep its own troops at Peking for the service of the legation, then it necessarily is the judge as to the character and strength or number of the guard. But, as a recognized principle of international intercourse, no government would, if it could prevent it, permit the introduction into its territory of such a foreign military force. China, like any other government, is bound to afford adequate protection to our legation. On the occasion of Mr. Burlingame's visit to Peking in 1862, a Chinese escort was furnished to him.

The President sees no reason why the legation should court danger by remaining at Peking in the face of imminent or threatening peril; and you would have the right to an adequate escort to assist you in avoiding it by removal to a place of safety where you would be under the immediate and legitimate protection of your own flag. Nevertheless, in view of your telegram of the 18th instant, reporting that other legations are bringing military guards to Peking with the consent of the Chinese Government, I telegraphed the 19th instant, as follows:

You say troops have arrived with China's consent to protect other legations. In cooperation with Carpenter you are authorized to bring up marines under similar conditions.

I am, etc., W. Q. GRESHAM.

TREATY OF PEACE BETWEEN CHINA AND JAPAN.

Mr. Denby to Mr. Gresham.

No. 2206.] LEGATION OF THE UNITED STATES,
Peking, April 29, 1895. (Received June 17.)

SIR: In my dispatch No. 2203, of the 25th instant, I inclosed a copy of the précis of the recent treaty of peace made at Shimonoseki between Japan and China. I have now the honor to inclose the full text thereof.

* * * * * * *

I am, etc., CHARLES DENBY.

[Inclosure in No. 2206.]

Treaty of peace between Japan and China.

His Majesty the Emperor of China and His Majesty the Emperor of Japan, desiring to restore the blessings of peace to their countries and subjects and to remove all cause for future complications, have named as their plenipotentiaries for the purpose of concluding a treaty of peace; that is to say, His Majesty the Emperor of China, Li Hung Chang, senior tutor to the heir apparent, senior grand secretary of state, minister superintendent of trade for the northern ports of China, viceroy of the province of Chili, and earl of the first rank, and Li Ching Fong, ex-minister of the diplomatic service, of the second official rank, and His Majesty the Emperor of Japan, Count Ito Hirobumi, Junii, grand cross of the imperial order of Paullownia, minister president of state, and Viscount Mutsu Munemitsu, Junii, first class of the imperial order of the second treasure, minister of state for foreign affairs, who, after having exchanged their full powers, which were found to be in good and proper form, have agreed to the following articles:

ARTICLE I.

China recognizes definitely the full and complete independence and autonomy of Corea, and in consequence the payment of tribute and the performance of ceremonies and formalities by Corea to China, in derogation of such independence and autonomy, shall wholly cease for the future.

ARTICLE II.

China cedes to Japan in perpetuity and full sovereignty the following territories, together with all fortifications thereon:

(*a*) The southern portion of the province of Fëng Tien within the following boundaries:

The line of demarcation begins at the mouth of the River Yalu and ascends that stream to the mouth of the River An-ping; from thence the line runs to Fëng Huang; from thence to Haicheng; from thence to Ying Kow, forming a line which describes the southern portion of the territory. The places above named are included in the ceded territory. When the line reaches the River Liao at Feng Kow, it follows the course of that stream to its mouth, where it terminates. The mid-channel of the River Liao shall be taken as the line of demarcation.

This cession also includes all islands appertaining or belonging to the province of Fëng Tien, situated in the eastern portion of the Bay of Liao Tung and in the northern part of the Yellow Sea.

(*b*) The island of Formosa, together with all the islands appertaining or belonging to said island of Formosa.

(*c*) The Pescadores Group—that is to say, all islands lying between the 119th and 120th degrees of longitude east of Greenwich and the 23rd and 24th degrees of north latitude.

ARTICLE III.

The alignments of the portions described in the preceding article and shown on the annexed map shall be subject to verification and demarcation on the spot, by a joint commission of delimitation consisting of two or more Chinese and two or more Japanese delegates to be appointed immediately after the exchange of the ratifications of this act. In case the boundaries laid down in this act are found to be defective at any point, either on account of topography or in consideration of good administration, it shall also be the duty of the delimitation commission to rectify the same.

The delimitation commission will enter upon its duties as soon as possible and will bring its labors to a conclusion within the period of one year after appointment.

The alignments laid down in this act shall, however, be maintained until the rectifications of the delimitation commission, if any are made, shall have received the approval of the Governments of China and Japan.

ARTICLE IV.

China agrees to pay to Japan as a war indemnity the sum of 200,000,000 Kuping taels. The said sum is to be paid in eight installments; the first installment of 50,000,000 taels to be paid within six months and the second installment of 50,000,000 taels to be paid within twelve months after the exchange of the ratifications of this act; the remaining sum to be paid in six equal annual installments, as follows:

The first of such equal annual installments to be paid within two years; the second, within three years; the third, within four years; the fourth, within five years; the fifth, within six years, and the sixth, within seven years, after the exchange of the

ratifications of this act. Interest at the rate of 5 per centum per annum shall begin to run on all unpaid portions of the said indemnity from the date the first installment falls due.

China shall, however, have the right to pay by anticipation at any time any or all of said installments. In case the whole amount of the said indemnity is paid within three years after the exchange of the ratifications of the present act, all interest shall be waived, and the interest for two years and a half or for any less period, if then already paid, shall be included as a part of the principal amount of the indemnity.

ARTICLE V.

The inhabitants of the territory ceded to Japan, who wish to take up their residence outside the ceded districts, shall be at liberty to sell their real property and retire.

For this purpose a period of two years from the date of the exchange of the ratifications of the present act shall be granted. At the expiration of that period those of the inhabitants who shall not have left said territories shall, at the option of Japan, be deemed Japanese subjects.

Each of the two Governments shall immediately upon the exchange of the ratifications of the present act send one or more commissioners to Formosa to effect a final transfer of that province, and within the space of two months after the exchange of the ratifications of this act such transfer shall be completed.

ARTICLE VI.

All treaties between China and Japan having come to an end, in consequence of war, China engages immediately upon the exchange of the ratifications of this act, to appoint plenipotentiaries to conclude with the Japanese plenipotentiaries, a treaty of commerce and navigation and a convention to regulate frontier intercourse and trade.

The treaties, conventions, and regulations now subsisting between China and European powers shall serve as a basis for the said treaty and convention between China and Japan. From the date of the exchange of the ratifications of this act until the said treaty and convention are brought into actual operation, the Japanese Government, its officials, commerce, navigation, frontier intercourse and trade, industries, ships, and subjects, shall, in every respect, be accorded, by China, most-favored-nation treatment.

China makes, in addition, the following concessions, to take effect six months after the date of the present act:

First. The following cities, towns, and ports, in addition to those already opened, shall be opened to the trade, residence, industries, and manufactures of Japanese subjects, under the same conditions and with the same privileges and facilities as exist at the present open cities, towns, and ports of China.

(1) Shashih, in the province of Hupeh.

(2) Chungking, in the province in Szechuan.

(3) Suchow, in the province of Kian Su.

(4) Hang Chow, in the province of Chekiang.

The Japanese Government shall have the right to station consuls at any or all of the above-named places.

Second. Steam navigation for vessels under the Japanese flag for the conveyance of passengers and cargo shall be extended to the following places:

(1) On the upper Yangtze River, from Ichang to Chungking.

(2) On the Woosung River and the canal, from Shanghai to Suchow and Hangchow.

The rules and regulations which now govern the navigation of the inland waters of China by foreign vessels shall, so far as applicable, be enforced in respect of the above-named routes until new rules and regulations are conjointly agreed to.

Third. Japanese subjects purchasing goods or produce in the interior of China or transporting imported merchandise into the interior of China shall have the right temporarily to rent or hire warehouses for the storage of the articles so purchased or transported without the payment of any taxes or exactions whatever.

Fourth. Japanese subjects shall be free to engage in all kinds of manufacturing industries in all the open cities, towns, and ports of China, and shall be at liberty to import into China all kinds of machinery, paying only the stipulated duties thereon.

All articles manufactured by Japanese subjects in China shall, in respect of inland transit and internal taxes, duties, charges, and exactions of all kinds, and also in respect of warehousing and storage facilities in the interior of China, stand upon the same footing and enjoy the same privileges and exemptions as merchandise imported by Japanese subjects into China.

In the event additional rules and regulations are necessary in connection with these concessions, they shall be embodied in the treaty of commerce and navigation provided for by this article.

ARTICLE VII.

Subject to the provisions of the next succeeding article, the evacuation of China by the armies of Japan shall be completely effected within three months after the exchange of the ratifications of the present act.

ARTICLE VIII.

As a guarantee of the faithful performance of the stipulations of this act, China consents to the temporary occupation by the military forces of Japan of Wei-hai-wei in the province of Shantung.

Upon the payment of the first two installments of the war indemnity herein stipulated for and the exchange of the ratifications of the treaty of commerce and navigation the said place shall be evacuated by the Japanese forces, provided the Chinese Government consent to pledge, under suitable and sufficient arrangements, the customs revenue of China as a security for the payment of the principal and interest of the remaining installments of said indemnity.

It is, however, expressly understood, that no such evacuation shall take place until after the exchange of the ratifications of the treaty of commerce and navigation.

ARTICLE IX.

Immediately upon the exchange of the ratifications of this act all prisoners of war then held shall be restored, and China undertakes not to illtreat or punish prisoners of war so restored to her by Japan. China also engages to at once release all Japanese subjects accused of being military spies or charged with any other military offenses. China further engages not to punish in any manner nor to allow to be punished those Chinese subjects who have in any manner been compromised in their relations with the Japanese army during the war.

ARTICLE X.

All offensive military operations shall cease upon the exchange of the ratifications of this act.

ARTICLE XI.

The present act shall be ratified by their majesties the Emperor of China and the Emperor of Japan, and the ratifications shall be exchanged at Chefoo, on the 14th day of the 4th month of the 28th year of Kwang Hsü, corresponding to the 8th day of the 5th month of the 28th year of Meiji.

In witness whereof the respective plenipotentiaries have signed the same and have affixed thereto the seal of their arms.

Done at Shimonoseki, in duplicate, this 23d day of the 3d month of the 21st year of Kwang Hsü, corresponding to the 17th day of the 4th month of the 28th year of Meiji.

LI HUNG CHANG. [L. S.]

Plenipotentiary of His Majesty the Emperor of China, Senior Tutor of the Heir Apparent, Senior Grand Secretary of State, Minister Superintendent of Trade for the North Ports of China, Viceroy of the Province of Chili, and Earl of the First Rank.

COUNT ITO HIROBUMI. [L. S.]

Junii, Grand Cross of the Imperial Order of Paullownia, Minister President of State, Plenipotentiary of His Majesty the Emperor of Japan.

VISCOUNT MUTSU MUNEMITSU. [L. S.]

Junii, First Class of the Imperial Order of the Sacred Treasure, Minister of State for Foreign Affairs, Plenipotentiary of His Majesty the Emperor of Japan.

Separate articles.

ARTICLE I.

The Japanese military forces which are, under Article VIII of the treaty of peace signed this day, to temporarily occupy Wei-hai-wei, shall not exceed one brigade, and from the date of the exchange of the ratifications of the said treaty of peace

China shall pay annually one-fourth of the amount of the expenses of such temporary occupation, that is to say, at the rate of 500,000 Kuping taels per annum.

ARTICLE II.

The territory temporarily occupied at Wei-hai-wei shall comprise the island of Liu Kung and belt of land 5 Japanese Ri wide along the entire coast line of the Bay of Wei-hai-wei. No Chinese troops shall be permitted to approach or occupy any places within a zone of 5 Japanese Ri wide beyond the boundaries of the occupied territory.

ARTICLE III.

The civil administration of the occupied territory shall remain in the hands of the Chinese authorities. But such authorities shall at all times be obliged to conform to the orders which the commander of the Japanese army of occupation may deem it necessary to give in the interest of the health, maintenance, safety, distribution, or discipline of the troops.

All military offences committed within the occupied territory shall be subject to the jurisdiction of the Japanese military authorities.

The foregoing separate articles shall have the same force, value, and effect as if they had been, word for word, inserted in the treaty of peace signed this day.

(Signed as above.)

Convention.

ARTICLE I.

The convention of armistice concluded on the 5th day of the 3rd month of the 21st year of Kwang Hsü, corresponding to the 30th day of the 3d month of the 28th year of Meiji, from this date.

ARTICLE II.

The armistice, which is prolonged by this convention, shall terminate, without notice on either side, at midnight on the 14th day of the 4th month of the 21st year of Kwang Hsü, corresponding to the 8th day of the 5th month of the 28th year of Meiji. The rejection in the meantime, however, of the said treaty of peace, by either high contracting party, shall have the effect of at once terminating this armistice without previous notice.

(Signed as above.)

Mr. Denby to Mr. Gresham.

[Telegram.]

PEKING, *May 9, 1895.*

The ratifications of the treaty were exchanged. Japan agrees not to occupy permanently Liaotung.

DENBY.